Draft Redline

Board Policy 1.20.010-P

Board ~~of Education~~Composition and Board Member Duties

I. Composition/Elections

The Board of Education of Portland P~~p~~ublic S~~s~~chools ("the Board") ~~district No. 1 Multnomah County, Oregon, shall~~ consists of seven (7) ~~school board~~ members~~,~~ nominated by zone and elected at large in accordance with the elections laws of the State of Oregon. Elections shall take place in each odd-numbered year on the third Tuesday in May.

II. Eligibility

To be eligible for a position on the Board ~~of the Portland public school district No. 1 Multnomah County~~, a person must at the time of their election:

A. Be a citizen of the United States and of Oregon;

B. Have been a resident of the district for a period of one (1) year immediately preceding their election; and,

C. Be a registered voter and a resident of the respective zone to which they seek nomination or appointment.

No person who is an employee of PPS~~the district~~ is eligible to serve as a board member while so employed.

III. Term

A. Each Board member shall serve for a term of four (4) years; three shall be elected at one biennial election and four in the subsequent biennial election, except where additional vacancies of Board positions occur because of temporary appointments. The term of office of regularly elected ~~b~~Board members shall begin on July 1 next following the election.

B. In the event of a Board vacancy, the position shall be filled by majority vote of the remaining members of the Board.

C. The Board member so designated shall meet the eligibility requirements of ORS 332.018 and reside in the zone in which the vacancy occurs. The Board shall advertise for a 20-day period in an attempt to find an eligible resident from the same zone to fill the vacancy. The Board member appointed shall serve until June 30 following the next regular district election, at which time his/her successor shall be elected to fill the remainder, if any, of the unexpired

term. If the term to which the Board member was appointed expires on June 30 following the election of the successor, the successor shall be elected to a full term.

D. In the event that a majority of the Board member positions are vacant, the governing body of the Multnomah Education Service District shall fill the vacancies according to law.

IV. Student Representation

A. In addition to the seven (7) Board members, there shall be one (1) student representative on the Board to provide for the efficacious representation of students.

B. The student representative shall be entitled to all the rights, responsibilities, duties, and privileges of a Board member with the following exceptions:

i. The student representative shall not have an official vote in Board matters~~,~~ but shall be entitled to an unofficial vote recorded in the minutes.

ii. The student representative shall not be involved in, have an unofficial vote on, or receive materials pertaining to personnel or legal matters except as designated by the Board.

iii. The student representative shall not participate in or attend executive sessions without the consent of the Board.

iv. The student representative shall not be held responsible for representing constituencies aside from the PPS~~district~~ student body.

C. The student representative shall be a student regularly attending a PPS~~district~~ high school in grades ten (10) through twelve (12).

D. The student representative shall serve on the Board for a period of one (1) year.

V. Election of Board Chair and Vice Chair

A. The Board shall elect one of its members as Board ~~c~~Chair and one of its members as Board ~~v~~Vice ~~c~~Chair. The Board shall elect by majority vote the ~~c~~Chair and ~~v~~Vice ~~c~~Chair at such times and for such periods as follows:

i. At the first regular meeting in January for the period from such election until the election of the succeeding ~~c~~Chair or ~~v~~Vice ~~c~~Chair, as the case may be, at the first regular meeting in the succeeding July;

ii. At the first regular meeting in July for the period from such election until the election of the succeeding ~~c~~Chair or ~~v~~Vice ~~c~~Chair, as the case may be, at the first regular meeting in the succeeding January.

B. The Board may, for any reason it deems adequate, elect any members to serve as ~~c~~Chair and ~~v~~Vice ~~c~~Chair; provided however, that in no case may a Board member serve as ~~c~~Chair for more than four consecutive years.

VI. Board Chair Duties

It shall be the duty of the Board ~~c~~Chair to:

A. Preside at all meetings of the Board in accordance with its bylaws;

B. Sign such instruments as the Board may authorize;

C. Appoint members to those committees established by the Board;

D. Function as ex-officio member of all Board committees;

E. Perform duties as may be required by law;

F. Perform the duties of designated Board spokesperson when authorized by the Board;

G. Present to the Board from time to time such observations, suggestions and recommendations as may seem to the Chair ~~him/her~~ necessary for the governance and improvement of PPS~~the Portland Public Schools~~;

H. Serve as liaison between the Board and Board staff.

VII. Vice Chair Duties

In the absence or disability of the Board ~~c~~Chair, the Board ~~v~~Vice ~~c~~Chair shall exercise all the powers and assume all of the responsibilities of the ~~c~~Chair. In the event of the absence or disability of the ~~c~~Chair and the ~~v~~Vice ~~c~~Chair, a chair pro tem shall be elected by remaining members of the Board.

VIII. Individual Board Member Duties

The duties of individual Board members shall include the following:

A. To study all reports submitted to the Board by the ~~s~~Superintendent;

B. To assist in presenting to the public the needs of the educational system and to adopt a budget which will satisfy those needs;

C. To protect the schools against the encroachment of special interests that seek school time for the purpose of commerce, advertising or propaganda;

D. To perform the specific duties imposed upon Board members by statute;

E. To become informed about PPS's~~the district's~~ educational program and operations, visit schools and request information from staff;

F. To receive information from parents, students, employees and community members ~~patrons~~ pertaining to PPS ~~district~~ operations and refer requests for action or complaints to the S~~s~~uperintendent for exploration and resolution by an appropriate member of the administrative staff for later report to the Board, as

appropriate.

G. According to the law, the duties connected with governance of the schools~~,~~ which devolve upon the Board must be performed at regular or special meetings of the Board. Individual members of the Board have authority only when acting as a Board legally in session. The Board shall not be bound in any way by any action or statement on the part of any individual Board member, except when such statement or action is pursuant to specific instructions of the Board. Any member of the Board is free to express individual views on any subject, provided that the expression of those views is in a form~~,~~ which adequately informs the recipient(s) that the individual is not speaking for PPS~~the district~~ or the Board.

H. Board members will not attempt to exercise individual authority over PPS and nor individually direct the work of the Superintendent or staff.

~~G. In view of the danger of misunderstandings arising with regard to correspondence, the Board staff shall provide to individual members for their use in discharging their duties as members stationery containing the Board member's name, address, telephone number, other contact information and title as Board member. Official stationery of the Board shall be used only by the Board chair and to express positions of the Board consistent with Board policies and resolutions.~~

Legal References: ORS 255.335; ORS 332.015; ORS 332.016; ORS 332.118; ORS 332.122; ORS 332.124; ORS 332.040; ORS 332.075; Oregon Constitution, Article II, Section 2

History: Adpt 6/71; Amd 5/21/01, BA 1878; Amd. 9/9/02; BA 2417; Amd. 4/2025

BBAA - Individual Board Member's Authority and Responsibility

Code: BBAA
Readopted: 5/28/24
Adopted: 3/09/09
Orig. Code(s): BBAA

An individual Board member exercises the authority and responsibility of their position when the Board is in a legally called session.

A Board member has the authority to act in the name of the Board when authorized by a specific Board motion. The affirmative vote of the majority of members of the Board is required to transact any business. When authorized to act as the district's designated representative in collective bargaining, a Board member may make and accept proposals in bargaining subject to subsequent approval by the Board.

A Board member has the right to express personal opinions. When expressing such opinions in public, the Board member must clearly identify the opinions as their own. This does not preclude a board member from endorsing a candidate or measure in their capacity as an individual board member. They may not make endorsements on behalf of the board unless authorized to do so.

Members will be knowledgeable of information requested through Board action, supplied by the superintendent and gained through attendance at district activities and through professional Board activities.

Members of the Board will adhere to the following in carrying out the responsibilities of membership:

1. Request for Information
Any individual Board member who desires a copy of an existing written report or survey prepared by the administrative staff will make such a request to the superintendent. A copy of the material may be made available to each member of the Board. Requests for the generation of reports or information which requires additional expense to the district must be submitted to the Board for consideration.

2. Requests for Legal Opinions
A request for a legal opinion by a Board member, must be approved by a majority vote of the Board before the request is made to legal counsel. If the legal opinion sought involves the superintendent's employment or performance, the request should be made to the Board chair. Legal counsel is responsible to the Board.

3. Action on Complaints or Requests Made to Board Members
When Board members receive complaints or requests for action from staff, students or members of the public, such information is to be conveyed to the superintendent for action.

4. Board Member's Relationship to Administration
Individual Board members will be informed about the district's educational program, may visit schools or other facilities to gain information, and may request information from the superintendent. No individual Board member may direct the superintendent to action without Board authorization. Board members will not intervene in the administration of the district or its schools.

5. Contracts or Agreements
All contracts of the district must be approved by the Board, unless otherwise delegated by the Board to the superintendent or designee for approval, before an order can be drawn for payment. If a contract is made without authority of the Board, the individual making such contract shall be personally liable.

END OF POLICY

Legal Reference(s):
ORS 332.045
~~ORS 332~~.055
~~ORS 332~~.057
~~ORS 332~~.075

38 Or. Atty. Gen. Op. 1995 (1978)
S. Benton Educ. Ass'n v. Monroe Union High Sch. Dist., 83 Or. App. 425 (1987).

Cross Reference(s):
BHD - Board Member Compensation and Expense Reimbursement

SALEM•KEIZER PUBLIC SCHOOLS

Board Member Code of Conduct

The board and its members will act with integrity, committing themselves to ethical, professional, and lawful conduct, including proper use of authority and appropriate decorum when acting as board members.

Board members must have loyalty to the students, families, and community in Salem-Keizer School District and not be conflicted by loyalties to staff, other organizations, or any personal interest as a parent or guardian of a student. The board commits that the interest of students will come first, and the board will honor its trustee role in representing the needs of students and their families using equitable practices in governance.

Board members must avoid conflict of interest with respect to their fiduciary responsibility:

1. There will be no self-dealing or business by a board member with the school district. Board members will annually, by August 31 of each year, disclose their involvements with other organizations, vendors, or any associations that might be, or might reasonably be seen as, a conflict of interest (form on file).

2. Board members will not use their board position to obtain employment in the school district for themselves, family members, or close associates. Should a board member apply for employment, they must first resign from the board.

Board members may not attempt to exercise individual authority over the school district:

1. Board members' interaction with the superintendent or with staff must recognize they individually cannot direct the work of staff or the superintendent. The board employs one person, the superintendent.

2. Board members' interaction with public, press, or other entities must recognize the same limitation and the inability of any board member to speak for the board except to repeat explicitly stated board decisions.

3. Board members acting in the capacity of a liaison of the board, as assigned by the board chair, must recognize their role as a facilitator of information between the organization and the board as well as their inability to speak for the board.

4. Except for participation in board deliberation about whether reasonable interpretation of board policy has been achieved by the superintendent, board members will not express individual judgments of performance of employees of the superintendent.

Board members will respect confidentiality appropriate to issues of a sensitive nature.

Board members will be properly prepared for board meetings and will discharge the duties of the office as prescribed by statute.

Board members acknowledge their responsibility as mandatory reporters of child abuse and will educate themselves on requirements through district trainings and/or other means.

Monitoring Method: **Board Self-assessment**
Monitoring Frequency: **Annually**

Salem-Keizer Public Schools does not discriminate on the basis of race, color, religion, sex, sexual orientation, national origin, marital status, age or disability in its programs and activities.